

4	Doe vs. Montage International North America, LLC 2025-01490801	Motion to Compel Production Plaintiff Jane Doe’s motion to compel Defendant Montage International North America, LLC’s further responses to her requests for production of documents is denied. Pursuant to Code Civ. Proc., § 2031.310 a motion to compel further responses to inspection demands “shall be accompanied by a meet and confer declaration under Section 2016.040.” “A meet and confer declaration in support of a motion shall state facts showing a <u>reasonable and good faith attempt</u> at an informal resolution of each issue presented by the motion.” (Code Civ. P. § 2016.040 [emphasis added].) Here, Plaintiff’s counsel sent a single letter on 10/6/25 to Defense counsel. (Louro Decl., ¶ 7, Ex. B.) With respect to the requests at issue, the letter only stated: Nos. 7, 8, 16, 21, 26: The requests seek documents relating to other employee’s sexual misconduct. The information sought are directly relevant to Plaintiff’s claims. Documents that show other instances of misconduct by Montage employees are relevant to showing the behavior of other predators within Montage and Montage’s response in pattern and practice. The documents sought go directly to Montage’s handling of similar allegations. Please supplement. No. 22: Likewise, this request goes directly to Plaintiff’s claim and Montage’s handling of her specific complaint. No third party employment file is in contemplation. Please supplement. (<i>Id.</i>) Thereafter, Defendant served a supplemental response to No. 16, only on 10/24/25. (Louro Decl., 8, Ex. C.) There was no other meeting and conferring. This motion was filed on 11/14/25. What constitutes a proper meet and confer attempt is up to the discretion of the Court. In <i>Obregon v. Superior Court</i> (1998) 67 Cal.App.4th 424, the plaintiff “propounded grossly overbroad interrogatories,” and “[u]pon receiving the expectable objections, plaintiff simply sent a single brief letter, late in the relevant time period.” (<i>Id.</i> at 432.) The court also noted that the motion to compel “makes no effort to explain why
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		interrogatories of such breadth are proper in this case, an omission that reasonably suggests lack of a proper discovery objective.” (<i>Id.</i>) It states that “[t]he time available before the motion filing deadline, and the extent to which the responding party was complicit in the lapse of available time, can ... be relevant,” and that an “evaluation of whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appeared likely to bear fruit, should also be considered.” (<i>Id.</i>) The “level of effort that is reasonable is different in different circumstances, and may vary with the prospects for success. These are considerations entrusted to the trial court's discretion and judgment, with due regard for all relevant circumstances.” (<i>Id.</i> at 432-33.) Plaintiff’s 1 ½ page letter addressing her document demands, form interrogatories and requests for production of documents is not sufficient to comply with Plaintiff’s meet and confer obligation. The letter cites to no legal authority. Filing the motion without at least sending a follow-up email, letter or making a telephone call was premature and does not demonstrate a good faith effort pursuant to Code Civ. Proc., § 2016.040. Therefore, the motion is denied for failure to properly meet and confer. Defendant shall give notice.
5	First Foundation Inc. vs. Keller 2025-01493220	Motion to Compel Production This is continued to June 29, 2026 at 1:30 p.m. Counsel are ordered to meet and confer by phone or in person on ALL outstanding discovery disputes (whether or not the discovery is currently the subject of a compel motion). This meet and confer shall include the subject of sanctions. The court will withhold its ruling on the June 1, 2026 submitted matter. Parties are to submit a joint statement regarding the meet and confer efforts specifically outlining which issues remain in dispute and why. This is to be filed no later than June 22, 2026. Moving party will give notice
6	Kelson vs. Marriott International, Inc. 2021-01213506	Motion to Compel Plaintiff's Compliance With This Court's Order Dated 02/03/2026 The unopposed motion by Defendant Residence Inn by Marriott, LLC, erroneously sued and served as Marriot International, Inc. (“Moving Party”), for an order compelling Plaintiff Kathryn Kelson (“Plaintiff”)